

24STLC04039 24STLC04039

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-24

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Case Number: 24STLC04039 Hearing Date: June 24, 2026 Dept: 26

TENTATIVE RULING:

Specially Appearing Defendant 168 Rivers Inc.'s Motion to

Quash Service of Summons is granted. The default entered on January 6, 2026

against Defendant 168 Rivers, Inc. is hereby vacated.

Order to Show Cause Re: Failure to File Proof of Service as

to Defendant 168 Rivers, Inc. is advanced from 06/08/2027 to 07/28/2026 at 8:30

am in Department 26 at the Spring Street Courthouse.

Analysis:

Plaintiff Anthony Navarro ("Plaintiff") filed the instant

action against Defendants Shin Restaurant, 168 Rivers Corporation, and 168

Rivers, Inc. ("Defendants") on June 4, 2024. Proof of substitute service was

filed as to each Defendant and their defaults were entered on January 6, 2026.

Defendants filed a Motion to Quash Service of Summons on

January 8, 2026. After consideration of the papers, the Court placed the

hearing on the first Motion to Quash off calendar on account of Defendants

being in default and not being represented by counsel. (Minute Order,

02/03/26.)

On May 28, 2026, Defendant 168 Rivers, Inc. filed the

instant Motion to Quash Service of Summons through counsel. Defendant 168

Rivers, Inc. served the Motion on Plaintiff through Attorney Ted Shin, Esq. by

electronic mail on the same day. No opposition has been filed to date.

Discussion

Defendant 168 Rivers, Inc. moves

both to vacate the entry of default and quash service of the Summons and

Complaint.

Motion to Vacate Entry of

Default

Defendant 168 Rivers, Inc. moves

to vacate the entry of default on the grounds that Plaintiff's service of the

Summons and Complaint did not comply with the statutory requirements for

service on a corporation, such that the Court did not obtain personal

jurisdiction over Defendant. (Citing Code Civ. Proc., § 416.10; Dill v.

Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) To demonstrate

that the proof of service is not Code-compliant, Defendant 168 Rivers, Inc. first

argues that it is facially defective because it identifies “Alma Soto” as the process server, but then is signed by “Artesia Carter.” (Proof of Substitute Service, filed 12/01/25, ¶¶7-9.) The attached declaration of diligence also refers to the persons serving the papers as “Artesia Carter” and “Altares Carter.” (Id. at p. 3.)

Defendant 168 Rivers, Inc. also contends that leaving the papers with “Jane Doe” was improper because there is no indication she was authorized to accept the papers on its behalf, and the process servers did not ask for the registered agent, Krisda Hanwiryaritha. The Court does not find that either of these issues demonstrates non-compliance with the statutory requirements for service. The declaration of diligence expressly states that the process server asked for “the agent for service of process 168 RIVERS INC.” (Ibid.) Also, the papers could be left with “Jane Doe” in lieu of the agent for service of process because the declaration of diligence identified her as “apparently in charge” and “in charge of the business.” (Ibid.) However, the Motion is correct to point out that delivering the papers at 7:42 pm does not satisfy the requirement to leave them during usual business hours. (Citing Code Civ. Proc., § 415.20, subd. (a).)

Based on the foregoing facial and substantive defects, the Court finds that service of the Summons and Complaint

upon Defendant 168 Rivers, Inc. does not substantially comply with the statutory requirements. Therefore, the Court lacked personal jurisdiction over the moving party at the time it entered default. The request to vacate the entry of default is granted.

Motion to Quash Service of

Summons

Regarding the request to quash

service pursuant to Code of

Civil Procedure section 418.10, the statute provides: "A defendant, on or before the last day of

his or her time to plead or within any further time that the court may for good

cause allow, may serve and file a notice of motion for one or more of the

following purposes: To quash service of summons on the ground of lack of

jurisdiction of the court over him or her." (Code

Civ. Proc., § 418.10, subd. (a)(1), emphasis added.) A defendant has 30 days

after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).) In

light of the defective service detailed above, the Court finds good cause for

the timing of the Motion more than 30 days after purported service.

Substantively,

"[w]hen a defendant challenges the court's personal jurisdiction on the ground of improper

service of process 'the burden is on the plaintiff to prove the existence of

jurisdiction by proving, inter alia, the facts requisite to an effective

service.” (Summers v. McClanahan (2006) 140 Cal.App.4th

403, 413.) A proof of service containing a declaration from a registered

process server invokes a rebuttable presumption affecting the burden of

producing evidence, of the facts stated in the return. (Cal. Evid. Code, § 647;

see American

Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383,

390.) Here, the proof of service of the Summons and Complaint is not attested

to by a registered process server. (Proof of Substitute Service, ¶7.)

Therefore, no rebuttable presumption of truth in the return of service exists

and Plaintiff bears the burden of demonstrating that service upon Defendant 168

Rivers, Inc. complied with the statutory requirements. As Plaintiff has not

filed any opposition carrying this burden of proof, the request to quash

service of the Summons is also granted.

Conclusion

Specially Appearing Defendant 168 Rivers Inc.’s Motion to

Quash Service of Summons is granted. The default entered on January 6, 2026

against Defendant 168 Rivers, Inc. is hereby vacated.

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Judicial Assistant to give notice.